

Nagoya Protocol

Article 5:

Title: Fair and Equitable Benefit-Sharing

Jurisdiction: International

Category: Biodiversity

Source Citation: Nagoya Protocol on Access to Genetic Resources and the Fair and Equitable Sharing of Benefits Arising from their Utilization to the Convention on Biological Diversity, 2010, Article 5

Plain English Summary:

When genetic resources are used for research, product development, applications, or commercialization, the benefits must be shared fairly and equitably with the country or party providing those resources, based on mutually agreed terms. Where genetic resources or associated traditional knowledge are held by indigenous and local communities, benefits should also be shared fairly with those communities. Benefits can be monetary or non-monetary.

The Exact Legal Text:

1. In accordance with Article 15, paragraphs 3 and 7 of the Convention, benefits arising from the utilization of genetic resources as well as subsequent applications and commercialization shall be shared in a fair and equitable way with the Party providing such resources that is the country of origin of such resources or a Party that has acquired the genetic resources in accordance with the Convention. Such sharing shall be upon mutually agreed terms.
2. Each Party shall take legislative, administrative or policy measures, as appropriate, with the aim of ensuring that benefits arising from the utilization of genetic resources that are held by indigenous and local communities, in accordance with domestic legislation regarding the established rights of these indigenous and local communities over these genetic resources, are shared in a fair and equitable way with the communities concerned, based on mutually agreed terms.
3. To implement paragraph 1 above, each Party shall take legislative, administrative or policy measures, as appropriate.
4. Benefits may include monetary and non-monetary benefits, including but not limited to those listed in the Annex.
5. Each Party shall take legislative, administrative or policy measures, as appropriate, in order that the benefits arising from the utilization of traditional knowledge associated with genetic resources are shared in a fair and equitable way with indigenous and local communities holding such knowledge. Such sharing shall be upon mutually agreed terms.

Keywords/Triggers:

- Access and Benefit-Sharing (ABS)
- Fair and equitable benefit-sharing
- Genetic resources
- Traditional knowledge
- Indigenous and local communities
- Mutually agreed terms
- Monetary and non-monetary benefits
- Commercialization of genetic resources

Article 6:

TITLE: Access to Genetic Resources

JURISDICTION: International

CATEGORY: Biodiversity

SOURCE CITATION: Nagoya Protocol on Access to Genetic Resources and the Fair and Equitable Sharing of Benefits Arising from their Utilization to the Convention on Biological Diversity, 2010, Article 6

PLAIN ENGLISH SUMMARY:

An Ayurvedic startup or researcher generally needs Prior Informed Consent (PIC) before accessing genetic resources, subject to the provider country's domestic laws. Where Indigenous or local communities have established rights, their approval and involvement may also be required. Access conditions, benefit-sharing, IP rights, third-party use and changes of intent should be documented through Mutually Agreed Terms (MAT).

THE EXACT LEGAL TEXT:

1. In the exercise of sovereign rights over natural resources, and subject to domestic access and benefit-sharing legislation or regulatory requirements, access to genetic resources for their utilization shall be subject to the prior informed consent of the Party providing such resources that is the country of origin of such resources or a Party that has acquired the genetic resources in accordance with the Convention, unless otherwise determined by that Party.
2. In accordance with domestic law, each Party shall take measures, as appropriate, with the aim of ensuring that the prior informed consent or approval and involvement of indigenous and local communities is obtained for access to genetic resources where they have the established right to grant access to such resources.

3. Pursuant to paragraph 1 above, each Party requiring prior informed consent shall take the necessary legislative, administrative or policy measures, as appropriate, to:

- (a) Provide for legal certainty, clarity and transparency of their domestic access and benefit-sharing legislation or regulatory requirements;
- (b) Provide for fair and non-arbitrary rules and procedures on accessing genetic resources;
- (c) Provide information on how to apply for prior informed consent;
- (d) Provide for a clear and transparent written decision by a competent national authority, in a cost-effective manner and within a reasonable period of time;
- (e) Provide for the issuance at the time of access of a permit or its equivalent as evidence of the decision to grant prior informed consent and of the establishment of mutually agreed terms, and notify the Access and Benefit-sharing Clearing-House accordingly;
- (f) Where applicable, and subject to domestic legislation, set out criteria and/or processes for obtaining prior informed consent or approval and involvement of indigenous and local communities for access to genetic resources; and
- (g) Establish clear rules and procedures for requiring and establishing mutually agreed terms. Such terms shall be set out in writing and may include, inter alia:
 - (i) A dispute settlement clause;
 - (ii) Terms on benefit-sharing, including in relation to intellectual property rights;
 - (iii) Terms on subsequent third-party use, if any; and
 - (iv) Terms on changes of intent, where applicable.

KEYWORDS/TRIGGERS:

Prior Informed Consent (PIC), Access to Genetic Resources, Access and Benefit-Sharing (ABS), Indigenous and Local Communities, Mutually Agreed Terms (MAT), Genetic Resource Access Permit, Intellectual Property Rights, ABS Clearing-House

Article 7:

TITLE: Access to Traditional Knowledge Associated with Genetic Resources

JURISDICTION: International

CATEGORY: Biodiversity

SOURCE CITATION: Nagoya Protocol on Access to Genetic Resources and the Fair and Equitable Sharing of Benefits Arising from their Utilization to the Convention on Biological Diversity, 2010, Article 7

PLAIN ENGLISH SUMMARY:

An Ayurvedic startup or researcher accessing traditional knowledge associated with genetic resources must obtain the prior and informed consent or approval and involvement of the Indigenous and local communities that hold that knowledge, in accordance with domestic law. Mutually Agreed Terms (MAT) must also be established before accessing and using such traditional knowledge.

THE EXACT LEGAL TEXT:

In accordance with domestic law, each Party shall take measures, as appropriate, with the aim of ensuring that traditional knowledge associated with genetic resources that is held by indigenous and local communities is accessed with the prior and informed consent or approval and involvement of these indigenous and local communities, and that mutually agreed terms have been established.

KEYWORDS/TRIGGERS:

Traditional Knowledge (TK), Genetic Resources, Prior Informed Consent (PIC), Indigenous and Local Communities, Access and Benefit-Sharing (ABS), Mutually Agreed Terms (MAT), Ayurvedic Traditional Knowledge, Traditional Knowledge Access

Article 12:

TITLE: Traditional Knowledge Associated with Genetic Resources

JURISDICTION: International

CATEGORY: Biodiversity

SOURCE CITATION: Nagoya Protocol on Access to Genetic Resources and the Fair and Equitable Sharing of Benefits Arising from their Utilization to the Convention on Biological Diversity, 2010, Article 12

PLAIN ENGLISH SUMMARY:

Parties must consider the customary laws, community protocols, and procedures of Indigenous and local communities when dealing with traditional knowledge associated with genetic resources. They should also help communities develop protocols, minimum requirements for Mutually Agreed Terms (MAT), and model benefit-sharing clauses. Customary use and exchange of genetic resources and associated traditional knowledge should not be unnecessarily restricted.

THE EXACT LEGAL TEXT:

1. In implementing their obligations under this Protocol, Parties shall in accordance with domestic law take into consideration indigenous and local communities' customary laws, community protocols and procedures, as applicable, with respect to traditional knowledge associated with genetic resources.
2. Parties, with the effective participation of the indigenous and local communities concerned, shall establish mechanisms to inform potential users of traditional knowledge associated with genetic resources about their obligations, including measures as made available through the Access and Benefit-sharing Clearing-House for access to and fair and equitable sharing of benefits arising from the utilization of such knowledge.
3. Parties shall endeavour to support, as appropriate, the development by indigenous and local communities, including women within these communities, of:
 - (a) Community protocols in relation to access to traditional knowledge associated with genetic resources and the fair and equitable sharing of benefits arising out of the utilization of such knowledge;
 - (b) Minimum requirements for mutually agreed terms to secure the fair and equitable sharing of benefits arising from the utilization of traditional knowledge associated with genetic resources; and
 - (c) Model contractual clauses for benefit-sharing arising from the utilization of traditional knowledge associated with genetic resources.
4. Parties, in their implementation of this Protocol, shall, as far as possible, not restrict the customary use and exchange of genetic resources and associated traditional knowledge within and amongst indigenous and local communities.

KEYWORDS/TRIGGERS:

Traditional Knowledge (TK), Genetic Resources, Customary Laws, Community Protocols, Indigenous and Local Communities, Mutually Agreed Terms (MAT), Benefit-Sharing, Access and Benefit-Sharing (ABS)

Article 15:

TITLE: Compliance with Domestic Legislation or Regulatory Requirements on Access and Benefit-Sharing

JURISDICTION: International

CATEGORY: Biodiversity

SOURCE CITATION: Nagoya Protocol on Access to Genetic Resources and the Fair and Equitable Sharing of Benefits Arising from their Utilization to the Convention on Biological Diversity, 2010, Article 15

PLAIN ENGLISH SUMMARY:

Countries must take appropriate measures to ensure that genetic resources used within their jurisdiction were legally accessed with Prior Informed Consent (PIC) and under Mutually Agreed Terms (MAT), as required by the provider country's ABS laws. If these requirements are not followed, countries must take effective measures to address the non-compliance and cooperate when violations are suspected.

THE EXACT LEGAL TEXT:

1. Each Party shall take appropriate, effective and proportionate legislative, administrative or policy measures to provide that genetic resources utilized within its jurisdiction have been accessed in accordance with prior informed consent and that mutually agreed terms have been established, as required by the domestic access and benefit-sharing legislation or regulatory requirements of the other Party.
2. Parties shall take appropriate, effective and proportionate measures to address situations of non-compliance with measures adopted in accordance with paragraph 1 above.
3. Parties shall, as far as possible and as appropriate, cooperate in cases of alleged violation of domestic access and benefit-sharing legislation or regulatory requirements referred to in paragraph 1 above.

KEYWORDS/TRIGGERS:

ABS Compliance, Domestic ABS Legislation, Genetic Resources, Prior Informed Consent (PIC), Mutually Agreed Terms (MAT), Non-Compliance, ABS Violations, International Cooperation

Article 16:

TITLE: Compliance with Domestic Legislation or Regulatory Requirements on Access and Benefit-Sharing for Traditional Knowledge Associated with Genetic Resources

JURISDICTION: International

CATEGORY: Biodiversity

SOURCE CITATION: Nagoya Protocol on Access to Genetic Resources and the Fair and Equitable Sharing of Benefits Arising from their Utilization to the Convention on Biological Diversity, 2010, Article 16

PLAIN ENGLISH SUMMARY:

Countries must take appropriate measures to ensure that traditional knowledge associated with genetic resources has been accessed legally, with the Prior Informed Consent (PIC) or approval and involvement of the Indigenous and local communities that hold the knowledge. Mutually Agreed Terms (MAT) must also be established as required by the relevant domestic ABS laws. Countries should address non-compliance and cooperate when alleged violations occur.

THE EXACT LEGAL TEXT:

1. Each Party shall take appropriate, effective and proportionate legislative, administrative or policy measures, as appropriate, to provide that traditional knowledge associated with genetic resources utilized within their jurisdiction has been accessed in accordance with prior informed consent or approval and involvement of indigenous and local communities and that mutually agreed terms have been established, as required by domestic access and benefit-sharing legislation or regulatory requirements of the other Party where such indigenous and local communities are located.
2. Each Party shall take appropriate, effective and proportionate measures to address situations of non-compliance with measures adopted in accordance with paragraph 1 above.
3. Parties shall, as far as possible and as appropriate, cooperate in cases of alleged violation of domestic access and benefit-sharing legislation or regulatory requirements referred to in paragraph 1 above.

KEYWORDS/TRIGGERS:

Traditional Knowledge (TK), Genetic Resources, ABS Compliance, Prior Informed Consent (PIC), Indigenous and Local Communities, Mutually Agreed Terms (MAT), Non-Compliance, Domestic ABS Legislation

Article 17:

TITLE: Monitoring the Utilization of Genetic Resources

JURISDICTION: International

CATEGORY: Biodiversity

SOURCE CITATION: Nagoya Protocol on Access to Genetic Resources and the Fair and Equitable Sharing of Benefits Arising from their Utilization to the Convention on Biological Diversity, 2010, Article 17

PLAIN ENGLISH SUMMARY:

Countries must monitor and improve transparency in how genetic resources are accessed and used. Designated checkpoints may collect information about Prior Informed Consent (PIC), the source of genetic resources, Mutually Agreed Terms (MAT), and their utilization during research, development, innovation, pre-commercialization, or commercialization. An internationally recognized certificate of compliance provides evidence that the genetic resource was legally accessed and that MAT were established.

THE EXACT LEGAL TEXT:

1. To support compliance, each Party shall take measures, as appropriate, to monitor and to enhance transparency about the utilization of genetic resources. Such measures shall include:

(a) The designation of one or more checkpoints, as follows:

(i) Designated checkpoints would collect or receive, as appropriate, relevant information related to prior informed consent, to the source of the genetic resource, to the establishment of mutually agreed terms, and/or to the utilization of genetic resources, as appropriate;

(ii) Each Party shall, as appropriate and depending on the particular characteristics of a designated checkpoint, require users of genetic resources to provide the information specified in the above paragraph at a designated checkpoint. Each Party shall take appropriate, effective and proportionate measures to address situations of non-compliance;

(iii) Such information, including from internationally recognized certificates of compliance where they are available, will, without prejudice to the protection of confidential information, be provided to relevant national authorities, to the Party providing prior informed consent and to the Access and Benefit-sharing Clearing-House, as appropriate;

(iv) Checkpoints must be effective and should have functions relevant to implementation of this subparagraph (a). They should be relevant to the utilization of genetic resources, or to the

collection of relevant information at, inter alia, any stage of research, development, innovation, pre-commercialization or commercialization.

(b) Encouraging users and providers of genetic resources to include provisions in mutually agreed terms to share information on the implementation of such terms, including through reporting requirements; and

(c) Encouraging the use of cost-effective communication tools and systems.

2. A permit or its equivalent issued in accordance with Article 6, paragraph 3 (e) and made available to the Access and Benefit-sharing Clearing-House, shall constitute an internationally recognized certificate of compliance.

3. An internationally recognized certificate of compliance shall serve as evidence that the genetic resource which it covers has been accessed in accordance with prior informed consent and that mutually agreed terms have been established, as required by the domestic access and benefit-sharing legislation or regulatory requirements of the Party providing prior informed consent.

4. The internationally recognized certificate of compliance shall contain the following minimum information when it is not confidential:

(a) Issuing authority;

(b) Date of issuance;

(c) The provider;

(d) Unique identifier of the certificate;

(e) The person or entity to whom prior informed consent was granted;

(f) Subject-matter or genetic resources covered by the certificate;

(g) Confirmation that mutually agreed terms were established;

(h) Confirmation that prior informed consent was obtained; and

(i) Commercial and/or non-commercial use.

KEYWORDS/TRIGGERS:

Monitoring Genetic Resources, Access and Benefit-Sharing (ABS), Designated Checkpoints, Prior Informed Consent (PIC), Mutually Agreed Terms (MAT), Internationally Recognized Certificate of Compliance, ABS Clearing-House, Genetic Resource Utilization

Article 18:

TITLE: Compliance with Mutually Agreed Terms

JURISDICTION: International

CATEGORY: Biodiversity

SOURCE CITATION: Nagoya Protocol on Access to Genetic Resources and the Fair and Equitable Sharing of Benefits Arising from their Utilization to the Convention on Biological Diversity, 2010, Article 18

PLAIN ENGLISH SUMMARY:

Providers and users of genetic resources or associated traditional knowledge should include clear dispute-resolution provisions in their Mutually Agreed Terms (MAT). These may specify the jurisdiction, applicable law, and alternative dispute-resolution options such as mediation or arbitration. Countries must provide legal mechanisms for resolving disputes and supporting access to justice and enforcement of foreign judgments or arbitral awards.

THE EXACT LEGAL TEXT:

1. In the implementation of Article 6, paragraph 3 (g) (i) and Article 7, each Party shall encourage providers and users of genetic resources and/or traditional knowledge associated with genetic resources to include provisions in mutually agreed terms to cover, where appropriate, dispute resolution including:

(a) The jurisdiction to which they will subject any dispute resolution processes;

(b) The applicable law; and/or

(c) Options for alternative dispute resolution, such as mediation or arbitration.

2. Each Party shall ensure that an opportunity to seek recourse is available under their legal systems, consistent with applicable jurisdictional requirements, in cases of disputes arising from mutually agreed terms.

3. Each Party shall take effective measures, as appropriate, regarding:

(a) Access to justice; and

(b) The utilization of mechanisms regarding mutual recognition and enforcement of foreign judgments and arbitral awards.

4. The effectiveness of this article shall be reviewed by the Conference of the Parties serving as the meeting of the Parties to this Protocol in accordance with Article 31 of this Protocol.

KEYWORDS/TRIGGERS:

Mutually Agreed Terms (MAT), Dispute Resolution, Genetic Resources, Traditional Knowledge, Mediation, Arbitration, Access to Justice, Foreign Judgments and Arbitral Awards